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ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
05/08/2024
Clerk of the Court
BY: AUSTIN LAM
Deputy Clerk

CGC-24-614479

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

ADEENA ELLISON, an individual,

Plaintiff,

vs.

JEWISH LEARNINGWORKS, INC., a corporation; and DOES 1 through 10 inclusive,

Defendant.

Case No. _____

PLAINTIFF'S COMPLAINT FOR:

1. **WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY**
2. **DISCRIMINATION IN VIOLATION OF GOVERNMENT CODE SECTION 12940(a)**
3. **FAILURE TO PREVENT IN VIOLATION OF GOVERNMENT CODE SECTION 12940(k)**
4. **FAILURE TO ENGAGE IN INTERACTIVE PROCESS IN VIOLATION OF GOVERNMENT CODE SECTION 12940(n)**
5. **FAILURE TO PROVIDE ACCOMMODATION IN VIOLATION OF GOVERNMENT CODE SECTION 12940(m)**
6. **RETALIATION FOR REQUESTING ACCOMMODATION IN VIOLATION OF GOVERNMENT CODE SECTION 12940(m)**
7. **RETALIATION FOR USING CFRA LEAVE IN VIOLATION OF GOVERNMENT CODE SECTION 12945.2(q)**
8. **RETALIATION FOR COMPLAINING ABOUT ILLEGAL CONDUCT IN VIOLATION OF LABOR CODE SECTION 1102.5**
9. **FAILURE TO PAY OVERTIME IN VIOLATION OF SECTIONS 510, 1194, 1198**
10. **FAILURE TO AUTHORIZE AND PERMIT REST BREAKS IN VIOLATION OF LABOR CODE SECTION 226.7**
11. **FAILURE TO PROVIDE ACCURATE WAGE STATEMENTS IN VIOLATION OF LABOR CODE SECTION 226(a)**

JURY TRIAL DEMANDED

Plaintiff Adeena Ellison ("Plaintiff") alleges and complains against Defendants Jewish LearningWorks, Inc. and Does 1 through 10 (collectively, "Defendant") as follows:

PARTIES | JURISDICTION | VENUE

1. Plaintiff, at all times relevant hereto, is and has been a resident of the State of California.

2. Defendant Jewish LearningWorks, Inc. operates non-profit at 44 Page Street, Suite 604, San Francisco, California 94102 (the "worksite").

3. Defendant conducts business in the State of California.

4. Under California Code of Civil Procedure section 395(a), venue is proper in this County because Defendant resides in this County and/or Plaintiff's alleged injuries herein occurred in this County.

5. The true names and capacities of the defendants named herein as Does 1 through 10, inclusive, whether individual, corporate, associate or otherwise, are unknown to Plaintiff who therefore sues such defendants by fictitious names pursuant to California Code of Civil Procedure section 474. Plaintiff believes that all of the Doe defendants are California residents. Plaintiff will amend this Complaint to show such true names and capacities when they have been determined. Defendant and Doe Defendants are collectively referred to as "Defendant," "Defendants" or "Defendant Employers."

6. Plaintiff believes that, at all times relevant herein, each defendant designated, including Does 1 through 10, was the agent, managing agent, principal, owner, partner, joint venturer, representative, manager, servant, employee, and/or co-conspirator of each of the other defendants, and was at all times mentioned herein acting within the course and scope of said agency and employment, and that all acts or omissions alleged herein were duly committed with the ratification, knowledge, permission, encouragement, authorization, and consent of each defendant designated herein.

7. Defendant, and each of them, acted in concert with one another to commit the wrongful acts alleged herein, and aided, abetted, incited, compelled and/or coerced one another in the wrongful acts alleged herein, and/or attempted to do so, including pursuant to Government Code section12940(i). Defendant, and each of them, formed and executed a conspiracy or common plan pursuant to which they would commit the unlawful acts alleged herein, with all such acts alleged herein done as part of and pursuant to said conspiracy, intended to cause and actually causing Plaintiff harm.

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ALTER EGO | AGENCY | JOINT EMPLOYER

8. There exists such a unity of interest and ownership between Defendant Employers that the individuality and separateness of Defendant Employers have ceased to exist. At all times relevant hereto, Defendant Employers, and each of them, were the agents, employees, managing agents, supervisors, coconspirators, parent corporation, joint employers, alter egos, successors, and/or joint ventures of the other Defendant Employers, and each of them, and in doing the things alleged herein, were acting at least in part within the course and scope of said agency, employment, conspiracy, joint employer, alter ego status, successor status and/or joint venture and with the permission and consent of each of the other Defendant Employers. Whenever and wherever reference is made in this complaint to any act or failure to act by a defendant or co-defendant, such allegations and references shall also be deemed to mean the acts and/or failures to act by each defendant acting individually, jointly and severally.

9. Plaintiff believes Defendant Employers were both Plaintiff's joint employer and are liable under the joint employer and single enterprise theories. *See Laird v. Capital Cities* (1998) 68 Cal.App.4th 727, 737-38 (four factors to prove single enterprise are "interrelation of operations, common management, centralized control of labor relations, and common ownership or financial control. … Although courts consider the four factors together, they often deem centralized control of labor relations the most important."); *see also Vernon v. State of California* (2004) 116 Cal.App.4th 114, 128 (separate entities can also be deemed a "joint employer" by having the right to control the employment relationship, as evaluated by focusing on "an examination of defendant's role with respect to the right to hire, fire, transfer, promote, discipline, set the terms, conditions and privileges of employment, train and pay the plaintiff.").

10. Defendant Employers were Plaintiff's employers, joint employers and/or special employers within the meaning of Government Code sections 12926 (d), 12940 (a),(h),(1), (h)(3)(A), (i), and, 12950, and regularly employ five (5) or more persons and are therefore subject to the jurisdiction of this Court. Defendant Employers were Plaintiff's employers, joint employers and/or special employers within the meaning of the Labor Code and the applicable Industrial Welfare Commission Order, and are each an "employer or other person acting on behalf of an employer" as such term is used in Labor Code sections 558 and/or 558.1, and liable to Plaintiff on that basis. Defendant Employers are Plaintiff's joint employers by virtue of a joint enterprise, and that Plaintiff was an employee of Defendant Employers.

Plaintiff performed services for each and every one of Defendant Employers, and to the mutual benefit of all Defendant Employers, and all Defendant Employers shared control of Plaintiff as an employee, either directly or indirectly, and the manner in which Defendant Employers' business was and is conducted.

11. Labor Code section 558.1 provides that an employer or "other person acting on behalf of an employer" who violates certain California wage and hour laws "may be held liable as the employer for such violation." Labor Code section 558.1 defines "other person acting on behalf of an employer" as a "natural person who is an owner, director, officer, or managing agent" of the employer. Labor Code section 558.1(b). *See* Labor Code section 558(a) (authorizing civil penalties against "any employer or other person acting on behalf of an employer" who causes overtime pay violations to occur."); *see Atempa v. Pedrazzani,* 27 Cal.App.5th 809, 823-824 (2018); Labor Code section 1197.1 ("Any employer or other person acting either individually or as an officer, agent, or employee of another person" for failure to pay minimum wages."); *see Reynolds v. Bement*, 36 Cal.4th 1075, 1089 (2005) ("aggrieved employees may … maintain civil actions to recover such penalties"); *see Reynolds v. Bement*, 36 Cal.4th 1075, 1089, fn. 10 (2005) (alter ego doctrine may be used in wage claim actions to impose liability on controlling directors and shareholders); *see* Government Code section 12925(d) (defining "Person" as one *or more* individuals, partnerships, associations, corporations, limited liability companies, legal representatives, trustees, trustees in bankruptcy, and receivers or other fiduciaries).

12. Despite the formation of purported corporate existence, Defendant Employers are, in reality, one and the same, including, but not limited to because: (a) Defendant Employers are completely dominated and controlled by one another, who personally committed the frauds and violated the laws as set forth in this complaint, and who have hidden and currently hide behind Defendant Employers to perpetrate frauds, circumvent statutes, or accomplish some other wrongful or inequitable purpose; (b) Defendant Employers derive actual and significant monetary benefits by and through one another's unlawful conduct, and by using one another as the funding source for their own personal expenditures; (c) Defendant Employers, while really one and the same, were segregated to appear as though separate and distinct for purposes of perpetrating a fraud, circumventing a statute, or accomplishing some other wrongful or inequitable purpose; (d) Defendant Employers does not comply with all requisite corporate

formalities to maintain a legal and separate corporate existence; (e) the business affairs of Defendant Employers are, and at all times relevant were, so mixed and intermingled that the same cannot reasonably be segregated, and the same are in inextricable confusion. Defendant Employers are, and at all times relevant hereto were, used by one another as a mere shell and conduit for the conduct of certain of Defendant Employers' affairs, and are, and were, the alter ego of one another. The recognition of the separate existence of each of the Defendant Employers would not promote justice, in that it would permit Defendant Employers to insulate themselves from liability to Plaintiff for violations of the law. The corporate existence of Defendant Employers should each be disregarded in equity and for the ends of justice because such disregard is necessary to avoid fraud and injustice to Plaintiff herein. Accordingly, Defendant Employers constitute the alter ego of one another, and the fiction of their separate corporate existence must be disregarded.

ADMINISTRATIVE EXHAUSTION

13. Plaintiff exhausted administrative requirements for Plaintiff's claims.

14. On May 8, 2024, Plaintiff filed a complaint with the California Civil Rights Department (CRD) (formerly known as the Department of Fair Employment and Housing (DFEH)) setting forth the allegations and claims herein. Plaintiff obtained an immediate Right to Sue from the CRD.

FACTUAL ALLEGATIONS

15. **Defendant.** Defendant Jewish LearningWorks, Inc. operates non-profit at 44 Page Street, Suite 604, San Francisco, California 94102 (the "worksite").

16. **Plaintiff's Hire & Job Details.** On or about August 12, 2019, Defendant hired Plaintiff Adeena Ellison as an employee in the job position of Administrative Assistant.

17. Over time, Plaintiff was promoted to Programs and Data Specialist, with job duties including coordinating events.

18. Defendant initially classified Plaintiff as "non-exempt" but paid an annual salary of $60,000 for 35 hours per week. Effective July 2020, Defendant raised Plaintiff to $61,800.

19. In May 2021, Plaintiff started to report to Director of Educational Leadership ***Jennifer Mangel***.

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20. Effective June 23, 2021, Defendant raised Plaintiff to $63,654, and effective December 20, 2021, Defendant raised Plaintiff to $65,563. Effective July 1, 2022, Defendant raised Plaintiff to $68,765 for full-time (40 hours per week) and made clear that Plaintiff was not entitled to overtime insofar as "***All positions at Jewish LearningWorks are exempt***." Exhibit 1.

21. Effective February 1, 2023, Defendant raised Plaintiff to $71,000 "based on [Plaintiff's] work performance." Exhibit 2.

22. Effective July 1, 2023, Defendant raised Plaintiff to $75,000 and expressed gratitude to Plaintiff for being a "talented and committed team member." Exhibit 3.

23. **Plaintiff Complains About Being Misclassified.** In April 2022, Plaintiff complained to Jennifer Mangel, CEO ***Dana Sheanin***, and Administrative Assistant ***Lynn Rothman*** that her raise to $61,800 in July 2020 was insufficient because it was a cost of living increase that did not account for the additional five weekly hours of work from 35 to 40 hours per week. Plaintiff complained that she was entitled to overtime pay before the raise because she was considered non-exempt. However, Dana Sheanin told Plaintiff that Plaintiff was always exempt from overtime.

24. **Plaintiff Complains About Vacation Pay.** In June 2023, Plaintiff complained that she was not accruing vacation time as promised in Defendant's vacation policy. Plaintiff complained that Defendant was treating her like a "non-exempt" employee and thus not permitting vacation accrual whereas Defendant's handbook states: *regular, full-time exempt employees accrue vacation at the annual equivalent of: 120 hours (15 days) per year during the first and second years of employment 136 hours (17 days) during the third year 152 hours (19 days) during the fourth year 176 hours (22 days) per year during the fifth and subsequent years….* Exhibit 4.

25. Defendant told Plaintiff that she was "non-exempt" and Plaintiff had to advocate for herself. Defendant preferred that employees do not take time off and started to retaliate against Plaintiff for standing up for herself.

26. **Defendant Starts To Retaliate**. Even though Plaintiff had received numerous merit-based raises, Defendant began to accuse her of not meeting deadlines. On September 5, 2023, Plaintiff met with CEO Dana Sheanin, Jennifer Mangel, and Marketing Manager ***Liliana Peliks***. During the meeting, Dana Sheanin unfairly attacked Plaintiff for a report including incorrect data, even though Plaintiff had already

warned Dana Sheanin that the data would not appear as expected.

27. On October 5, 2023, Defendant issued Plaintiff a Performance Improvement Plan ("PIP"), giving Plaintiff 90 days to better manage deadlines. Exhibit 5. Plaintiff felt the PIP was unfair and, in turn, the PIP caused her immense stress. The same day, Plaintiff sought her medical leave options. Exhibit 6. Plaintiff informed HR Representative ***Antonette Wint*** that her doctor recommended 12 weeks off from work, but that all of her work prevented more than a three week leave.

28. **Plaintiff Takes Protected Leave.** On October 16, 2023, Plaintiff began a medical leave of absence for severe anxiety with a return to work date of November 6, 2023. Exhibit 7.

29. On October 26, 2023, Plaintiff sought to extend her medical leave and emailed Antonette Wint a doctor's note stating that Plaintiff has been under care since March 14, 2022, for "treatment of several medical conditions" and seeking leave until at least November 20, 2023. Exhibit 8.

30. **Plaintiff Returns To Work And Is Fired.** On November 20, 2023, Plaintiff returned from medical leave. Plaintiff was informed that the time she was on leave from October 16 to November 20, 2023, would count towards the 90 days meaning she had less than 60 days left to improve her performance per the PIP. Defendant did not even give Plaintiff that amount of time -- instead, Defendant fired Plaintiff for "job elimination" a week later.

31. **Wrongful Termination (Discrimination & Retaliation).** On November 30, 2023, Defendant informed Plaintiff that she was being fired. Antonette Wint informed Plaintiff that because of budget cuts Plaintiff's position was being eliminated. In reality, this is a pretext for wrongful termination.

32. Plaintiff was given a letter dated November 30, 2023, stating that the last day of work was immediate because, "*due to budget restraints Jewish LearningWorks has had to do some restructuring and your position as Program and Data Specialist will end December 31, 2023.*" Exhibit 9. Antonette Wint told Plaintiff that, consistent with the letter, Plaintiff would be paid through the end of the year.

33. During the termination meeting with Antonette Wint, Plaintiff was told that no other position besides hers was being eliminated.

34. During the termination meeting with Antonette Wint, Plaintiff asked for severance, pointing out that she was not given the full time to complete the PIP and that she had protected medical issues and complaints about wages, including vacation wages.

35. On December 4, 2023, Antonette Wint emailed Plaintiff accelerating the final date of employment from December 31, 2023 to December 6, 2023 (causing Plaintiff to lose almost a full month of pay) and offering severance of three months' pay if Plaintiff agreed to sign away her legal rights. Exhibit 10. Plaintiff refused to sign the severance agreement.

36. A substantial motivating reason for Defendant's decision to terminate Plaintiff's employment was Plaintiff's protected classes (disability) and/or protected conduct (complaining about wages, seeking protected leave, seeking reasonable accommodation), as alleged herein. A contributing factor in Defendant's decision to terminate Plaintiff's employment was Plaintiff's protected conduct, as alleged herein.

37. Other similarly situated employees who are not in the same protected classes as Plaintiff and/or who did not engage in the same or similar protected conduct as Plaintiff did, in fact, engage in actions similar to Plaintiff and were not terminated for such actions.

38. **Plaintiff's Pay & Misclassification.** Defendant misclassified Plaintiff as "exempt" as Plaintiff should have been "non-exempt" thus entitled to overtime and breaks. Even though Defendant (barely) paid Plaintiff the requisite minimum salary threshold, Defendant did not allow Plaintiff to customarily and regularly exercise discretion and independent judgment in performing her job duties, presumably under the Executive and/or Administrative Exemption, as required by California Code of Regulations, Title 8, Section 11040(1)(A)(2). Defendant's employees that supervised Plaintiff constantly micromanaged her, allowing almost zero discretion or independent judgment.

39. **Overtime Work.** Defendant failed to pay Plaintiff for work in excess of eight (8) hours in a day or more than forty (40) hours in a workweek at the rate of time-and-one-half (1.5) times the regular rate of pay for all hours worked in excess of eight (8) hours in a day or more than forty (40) hours in a workweek, and for work in excess of twelve (12) hours in a day overtime compensation at a rate of two (2) times the regular rate of pay.

40. **Rest Break Violations.** Defendant failed to authorize and permit Plaintiff to take a 10-minute rest break per each four (4) hour period worked or a major fraction thereof, according to proof. For instance, among other things according to proof: Plaintiff did not get rest breaks at all; Plaintiff was forced to work throughout Plaintiff's rest breaks; Plaintiff was "on-call" during rest breaks; Plaintiff's rest

breaks were not timely; Plaintiff's rest breaks were interrupted; Plaintiff's rest breaks were less than the full 10 minutes; and/or Defendant required Plaintiff to remain on premises at the worksite during rest breaks.

41. **Wage Statements.** Defendant knowingly and intentionally failed to provide Plaintiff with uniform, complete, and accurate wage statements because the wage statements provided to Plaintiff failed to list the: accurate totals of the hours worked; number of hours worked at each hourly rate; net wages earned; and/or gross wages earned.

42. **Final Pay.** Defendant failed to pay Plaintiff all wages owed to Plaintiff immediately upon Plaintiff's termination of employment, including earned and unpaid wages, such as: minimum wages; overtime wages; and/or rest period premium wages.

FIRST CAUSE OF ACTION

WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY

43. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

44. The elements of a claim for wrongful termination in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm. *See Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167; *see Yau v. Allen* (2014) 229 Cal.App.4th 144, 154.

45. Plaintiff is informed and believes that any one of the alleged violations of California statutes and public policy listed herein was a substantial motivating reason for Plaintiff's termination of employment.

46. The actions of Defendant as alleged herein constitute multiple and independent violations (or Plaintiff reasonably believed in good faith the actions constituted multiple and independent violations) of California statutes and public policy, including:

- California Government Code § 12940(a) (discrimination)
- California Government Code § 12940(k) (failure to prevent)
- California Government Code § 12940(n) (interactive process)
- California Government Code § 12945.2(q) (CFRA interference)

- California Government Code § 12945.2(k) (CFRA retaliation)
- California Labor Code § 1102.5 (illegal conduct retaliation)
- California Labor Code § 201 (payment of wages due)
- California Labor Code § 232 (amount of wages)

47. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff was harmed, and the termination of employment was a substantial factor in causing Plaintiff's harm.

48. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff has lost, and will continue to lose, substantial earnings and fringe benefits and has suffered and/or will suffer other actual, consequential and incidental financial losses, in an amount to be proven at trial in excess of the jurisdictional minimum of this Court.

49. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff was and is mentally upset, severely distressed (physically and mentally), embarrassed, humiliated and aggravated. As a result of the acts of Defendant, Plaintiff suffered harm to Plaintiff's reputation and claims general damages for such mental and physical distress and aggravation in a sum in excess of the jurisdictional minimum of this Court.

50. The actions alleged herein were taken by managing agents and/or officers of Defendant and/or ratified by managing agents and/or officers of Defendant, including but not limited to Jennifer Mangel, Dana Sheanin, and/or Antonette Wint, and said managing agents and/or officers of Defendant acted with oppression, fraud and malice, as those terms are used in California Civil Code section 3294. As such, Plaintiff is entitled to an award of punitive damages.

SECOND CAUSE OF ACTION

DISCRIMINATION IN VIOLATION OF GOVERNMENT CODE SECTION 12940(a)

51. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

52. At all times mentioned herein, California Government Code section 12940 *et seq. was* in full force and effect and was binding on Defendant, as it regularly employs five (5) or more persons.

53. California Government Code section 12940(a) makes it unlawful for "an employer, because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression,

age, sexual orientation, or veteran or military status of any person, to refuse to hire or employ the person or to refuse to select the person for a training program leading to employment, or to bar or to discharge the person from employment or from a training program leading to employment, or to discriminate against the person in compensation or in terms, conditions, or privileges of employment."

54. Plaintiff's disability was a substantial motivating factor for Defendant's decision to terminate Plaintiff's employment as alleged herein.

55. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff has lost, and will continue to lose, substantial earnings and fringe benefits and has suffered and/or will suffer other actual, consequential and incidental financial losses, in an amount to be proven at trial in excess of the jurisdictional minimum of this Court.

56. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff was and is mentally upset, severely distressed (physically and mentally), embarrassed, humiliated and aggravated. As a result of the aforesaid acts of Defendant, Plaintiff suffered harm to Plaintiff's reputation and claims general damages for such mental and physical distress and aggravation in a sum in excess of the jurisdictional minimum of this Court.

57. The actions alleged herein were taken by managing agents and/or officers of Defendant and/or ratified by managing agents and/or officers of Defendant, including but not limited to Jennifer Mangel, Dana Sheanin, and/or Antonette Wint, and said managing agents and/or officers of Defendant acted with oppression, fraud and malice, as those terms are used in California Civil Code section 3294. As such, Plaintiff is entitled to an award of punitive damages.

58. As a proximate result of the wrongful acts of Defendant, Plaintiff has been forced to hire attorneys to prosecute the claims herein, and has incurred and is expected to continue to incur attorneys' fees and costs in connection therewith. Plaintiff is entitled to recover attorneys' fees and costs under California Government Code section 12965(b).

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THIRD CAUSE OF ACTION

FAILURE TO PREVENT DISCRIMINATION IN VIOLATION OF GOVERNMENT CODE SECTION 12940(k)

59. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

60. At all times mentioned herein, California Government Code section 12940 *et seq. was* in full force and effect and was binding on Defendant, as it regularly employs five (5) or more persons.

61. California Government Code section 12940(k) makes it illegal "For an employer...to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring."

62. Defendant failed to take all reasonable steps necessary to prevent the discrimination that Plaintiff suffered, as alleged herein, and other conduct according to proof.

63. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff has lost, and will continue to lose, substantial earnings and fringe benefits and has suffered and/or will suffer other actual, consequential and incidental financial losses, in an amount to be proven at trial in excess of the jurisdictional minimum of this Court.

64. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff was and is mentally upset, severely distressed (physically and mentally), embarrassed, humiliated and aggravated. As a result of the aforesaid acts of Defendant, Plaintiff suffered harm to Plaintiff's reputation and claims general damages for such mental and physical distress and aggravation in a sum in excess of the jurisdictional minimum of this Court.

65. The actions alleged herein were taken by managing agents and/or officers of Defendant and/or ratified by managing agents and/or officers of Defendant, including but not limited to Jennifer Mangel, Dana Sheanin, and/or Antonette Wint, and said managing agents and/or officers of Defendant acted with oppression, fraud and malice, as those terms are used in California Civil Code section 3294. As such, Plaintiff is entitled to an award of punitive damages.

66. As a proximate result of the wrongful acts of Defendant, Plaintiff has been forced to hire attorneys to prosecute the claims herein, and has incurred and is expected to continue to incur attorneys' fees and costs in connection therewith. Plaintiff is entitled to recover attorneys' fees and costs under California Government Code section 12965(b).

FOURTH CAUSE OF ACTION

FAILURE TO ENGAGE IN THE INTERACTIVE PROCESS IN VIOLATION OF GOVERNMENT CODE SECTION 12940(n)

67. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

68. At all times mentioned herein, California Government Code section 12940 *et seq. was* in full force and effect and was binding on Defendant, as it regularly employs five (5) or more persons.

69. California Government Code section 12940(n) makes it illegal for an "employer or other entity …. to fail to engage in a timely, good faith, interactive process with the employee … to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee …with a known physical or mental disability or known medical condition." *See also* Cal. Code of Regs., tit. 2, section 11069.

70. At all times relevant herein, Defendant was aware of Plaintiff's disability and how it affected Plaintiff's major life activity of working.

71. Plaintiff was willing to participate in an interactive process to determine whether reasonable accommodations; however, Defendant failed to participate in a timely good-faith interactive process with Plaintiff to determine whether reasonable accommodations could be made, as alleged herein.

72. As a direct and proximate result of this illegal behavior by Defendant, Plaintiff has suffered the loss of Plaintiff's job, loss of compensation, loss of job benefits, humiliation, mental anguish, and severe emotional and physical distress, in an amount to be proven at trial.

73. In so doing, said managing agents and/or officers of Defendant, including Jennifer Mangel, Dana Sheanin, and/or Antonette Wint, acted with oppression, fraud and malice, as those terms are used in California Civil Code section 3294. As such, Plaintiff is entitled to an award of punitive damages.

74. Government Code section 12965(b) permits the award of reasonable attorneys' fees to a plaintiff that successfully pursues a FEHA claim. Plaintiff has and will continue to incur attorneys' fees in the pursuit of this action. As such, Plaintiff is entitled to an award of reasonable attorneys' fees.

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FIFTH CAUSE OF ACTION

FAILURE TO PROVIDE REASONABLE ACCOMMODATION IN VIOLATION OF GOVERNMENT CODE SECTION 12940(m)

75. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

76. At all times mentioned herein, California Government Code section 12940 *et seq. was* in full force and effect and was binding on Defendant, as it regularly employs five (5) or more persons.

77. California Government Code section 12940(m)(1) makes it illegal for an "employer … to fail to make reasonable accommodation for the known physical or mental disability of an … employee." *See also* Cal. Code of Regs., tit. 2, section 11068.

78. At all times relevant herein, Defendant was aware of Plaintiff's disability and how it affected Plaintiff's major life activity of working.

79. Plaintiff would have been able to perform Plaintiff's essential job duties with reasonable accommodations. However, Defendant failed to provide Plaintiff with reasonable accommodations, as alleged herein.

80. As a direct and proximate result of this illegal behavior by Defendant, Plaintiff has suffered the loss of Plaintiff's job, loss of compensation, loss of job benefits, humiliation, mental anguish, and severe emotional and physical distress, in an amount to be proven at trial.

81. In so doing, said managing agents and/or officers of Defendant, including Jennifer Mangel, Dana Sheanin, and/or Antonette Wint, acted with oppression, fraud and malice, as those terms are used in California Civil Code section 3294. As such, Plaintiff is entitled to an award of punitive damages.

82. Government Code section 12965(b) permits the award of reasonable attorneys' fees to a plaintiff that successfully pursues a FEHA claim. Plaintiff has and will continue to incur attorneys' fees in the pursuit of this action. As such, Plaintiff is entitled to an award of reasonable attorneys' fees.

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SIXTH CAUSE OF ACTION

RETALIATION FOR REQUESTING REASONABLE ACCOMMODATIONS IN VIOLATION OF GOVERNMENT CODE SECTION 12940(m)

83. Plaintiff incorporates by reference all preceding and subsequent paragraphs

84. At all times mentioned herein, California Government Code section 12940 *et seq. was* in full force and effect and was binding on Defendant, as it regularly employs five (5) or more persons.

85. California Government Code section 12940(m)(2) makes it illegal for an "employer … to, in addition to the employee protections provided pursuant [California Government Code section 12940(h)], retaliate or otherwise discriminate against a person for requesting accommodation under this subdivision, regardless of whether the request was granted." *See also* Cal. Code of Regs., tit. 2, section 11068.

86. At all times relevant herein, Defendant was aware of Plaintiff's disability and how it affected Plaintiff's major life activity of working.

87. During Plaintiff's employment with Defendant, Plaintiff engaged in protected activities and conduct as alleged herein.

88. Defendant took adverse actions against Plaintiff alleged herein, at least in substantial part, in retaliation for Plaintiff's protected activities set forth herein.

89. As a direct and proximate result of this illegal behavior by Defendant, Plaintiff has suffered the loss of Plaintiff's job, loss of compensation, loss of job benefits, humiliation, mental anguish, and severe emotional and physical distress, in an amount to be proven at trial.

90. The actions alleged herein were taken by managing agents and/or officers of Defendant, including but not limited to Jennifer Mangel, Dana Sheanin, and/or Antonette Wint and/or ratified by managing agents and/or officers of Defendant. In so doing, Defendant acted with oppression, fraud and malice, as those terms are used in California Civil Code section 3294. As such, Plaintiff is entitled to an award of punitive damages.

91. Government Code section 12965(b) permits the award of reasonable attorneys' fees to a Plaintiff that successfully pursues a FEHA claim. Plaintiff has and will continue to incur attorneys' fees in the pursuit of this action. As such, Plaintiff is entitled to an award of reasonable attorneys' fees.

SEVENTH CAUSE OF ACTION

RETALIATION FOR SEEKING/TAKING CFRA LEAVE IN VIOLATION OF GOVERNMENT CODE SECTION 12945.2(k)

92. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

93. At all times mentioned herein, California Government Code section 12940 *et seq. was* in full force and effect and was binding on Defendant, as it regularly employs five (5) or more persons.

94. California Government Code section 12945.2(b)(3) defines "Employer" to mean any "person who directly employers five or more persons to perform services for a wage or salary."

95. California Government Code section 12945.2(a) states that it "shall be an unlawful employment practice for any employer, as defined in paragraph (3) of subdivision (b), to refuse to grant a request by any employee with more than 12 months of service with the employer, and who has at least 1,250 hours of service with the employer during the previous 12-month period or who meets the requirements of subdivision (r), to take up to a total of 12 workweeks in any 12-month period for family care and medical leave. Family care and medical leave requested pursuant to this subdivision shall not be deemed to have been granted unless the employer provides the employee, upon granting the leave request, a guarantee of employment in the same or a comparable position upon the termination of the leave…."

96. California Government Code section 12945.2(k) makes it unlawful for an "employer to refuse to hire, or to discharge, fine, suspend, expel, or discriminate against, any individual because of any of the following: (1) An individual's exercise of the right to family care and medical leave provided by subdivision (a)…."

97. During Plaintiff's employment with Defendant, Plaintiff sought and/or took protected leave per California Government Code section 12945.2(a) as alleged herein.

98. Defendant took adverse actions against Plaintiff as alleged herein, at least in substantial part, in retaliation for Plaintiff's protected activities set forth herein.

99. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff has lost, and will continue to lose, substantial earnings and fringe benefits and has suffered and/or will suffer other actual, consequential and incidental financial losses, in an amount to be proven at trial in excess of the jurisdictional minimum of this Court.

100. As a direct and proximate result of the aforesaid acts of Defendant, Plaintiff was and is mentally upset, severely distressed (physically and mentally), embarrassed, humiliated and aggravated. As a result of the acts of Defendant, Plaintiff suffered harm to Plaintiff's reputation and claims general damages for such mental and physical distress and aggravation in a sum in excess of the jurisdictional minimum of this Court.

101. The actions alleged herein were taken by managing agents and/or officers of Defendant and/or ratified by managing agents and/or officers of Defendant, including but not limited to Jennifer Mangel, Dana Sheanin, and/or Antonette Wint, and said managing agents and/or officers of Defendant acted with oppression, fraud and malice, as those terms are used in California Civil Code section 3294. As such, Plaintiff is entitled to an award of punitive damages.

102. As a proximate result of the wrongful acts of Defendant, Plaintiff has been forced to hire attorneys to prosecute the claims herein, and has incurred and is expected to continue to incur attorneys' fees and costs in connection therewith. Plaintiff is entitled to recover attorneys' fees and costs under California Government Code section 12965(b).

EIGHTH CAUSE OF ACTION

RETALIATION IN VIOLATION OF LABOR CODE SECTION 1102.5

103. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

104. California Labor Code section 1102.5(a) states that an "employer, or any person acting on behalf of the employer, shall not make, adopt, or enforce any rule, regulation, or policy preventing an employee from disclosing information to a government or law enforcement agency, to a person with authority over the employee, or to another employee who has authority to investigate, discover, or correct the violation or noncompliance, or from providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties."

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105. California Labor Code section 1102.5(b) states that an "employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, to a government or law enforcement agency, or because the employer believes that the employee disclosed or may disclose information . . . to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance . . . if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties."

106. California Labor Code section 1102.5(c) states that an "employer, or any person acting on behalf of the employer, shall not retaliate against an employee for refusing to participate in an activity that would result in a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation."

107. California Labor Code section 1102.5(d) states that an "employer, or any person acting on behalf of the employer, shall not retaliate against an employee for having exercised his or her rights under subdivision (a), (b), or (c) in any former employment."

108. California Labor Code section 1102.6 states that "[i]n a civil action or administrative proceeding brought pursuant to Section 1102.5, once it has been demonstrated by a preponderance of the evidence that an activity proscribed by Section 1102.5 was a contributing factor in the alleged prohibited action against the employee, the employer shall have the burden of proof to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5."

109. California Labor Code section 1102.8(a) states that "[a]n employer shall prominently display in lettering larger than size 14 point type a list of employees' rights and responsibilities under the whistleblower laws, including the telephone number of the whistleblower hotline described in Section 1102.7."

110. Plaintiff is informed and believes that Plaintiff's protected conduct as alleged herein was a contributing factor in Defendant's decision to terminate Plaintiff's employment, and Plaintiff alleges that Defendant's conduct was a contributing factor in causing Plaintiff's harm as alleged herein.

111. Plaintiff reasonably believed and continues to believe that each of Plaintiff's complaints related to illegal actions taken by Defendant.

112. As a proximate result of the aforesaid acts, Plaintiff has lost, and will continue to lose, substantial earnings, promotional opportunities, fringe benefits and has suffered and/or will suffer other actual, consequential and incidental financial losses, in an amount to be proven at trial.

113. As a proximate result of the aforesaid acts, Plaintiff has become mentally upset, distressed, embarrassed, humiliated, and aggravated in a sum to be proven at the time of trial.

114. California Labor Code section 1102.5(f) states that in "addition to other penalties, an employer that is a corporation or limited liability company is liable for a civil penalty not exceeding ten thousand dollars ($10,000) for each violation of this section."

115. California Labor Code section 1102.5(j) states that the "court is authorized to award reasonable attorney's fees to a plaintiff who brings a successful action for a violation of these provisions." Plaintiff will continue to incur attorneys' fees in the pursuit of this action. As such, Plaintiff is entitled to an award of reasonable attorneys' fees.

116. California Labor Code section 1103 states that "[a]n employer or any other person or entity that violates this chapter is guilty of a misdemeanor punishable, in the case of an individual, by imprisonment in the county jail not to exceed one year or a fine not to exceed one thousand dollars ($1,000) or both that fine and imprisonment, or, in the case of a corporation, by a fine not to exceed five thousand dollars ($5,000)."

117. California Labor Code section 1105 states that "Nothing in this chapter shall prevent the injured employee from recovering damages from his employer for injury suffered through a violation of this chapter."

118. The actions alleged herein were taken by managing agents and/or officers of Defendant, including but not limited to Jennifer Mangel, Dana Sheanin, and/or Antonette Wint and/or ratified by managing agents and/or officers of Defendant. In so doing, Defendant acted with oppression, fraud and malice, as those terms are used in California Civil Code section 3294. As such, Plaintiff is entitled to an award of punitive damages.

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NINTH CAUSE OF ACTION

FAILURE TO PAY OVERTIME WAGES IN VIOLATION OF LABOR CODE SECTIONS 510, 1194, 1198, AND 1199 AND WAGE ORDER

119. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

120. At all relevant times, Plaintiff was subject to the provisions of the California Industrial Welfare Commission's Wage Orders and California Labor Code.

121. The applicable Industrial Welfare Commission Wage Order provides that: "(A) Daily Overtime – General Provisions. (1) The following overtime provisions are applicable to employees 18 years of age or over and to employees 16 or 17 years of age who are not required by law to attend school and are not otherwise prohibited by law from engaging in the subject work. Such employees shall not be employed more than eight (8) hours in any workday or more than 40 hours in any workweek unless the employee receives one and one-half (1 ½) times such employee's regular rate of pay for all hours worked over 40 hours in the workweek. Eight (8) hours of labor constitutes a day's work. Employment beyond eight (8) hours in any workday or more than six (6) days in any workweek is permissible provided the employee is compensated for such overtime at not less than: (a) One and one-half (1 ½) times the employee's regular rate of pay for all hours worked In excess of eight (8) hours up to and including twelve (12) hours in any workday, and for the first eight (8) hours worked on the seventh (7th) consecutive day of work in a workweek.; and (b) Double the employee's regular rate of pay for all hours worked in excess of 12 hours in any workday and for all hours worked in excess of eight (8) hours on the seventh (7th) consecutive day of work in a workweek. (c) The overtime rate of compensation required to be paid to a nonexempt full-time salaried employee shall be computed by using the employee's regular hourly salary as one fortieth (1/40) of the employee's weekly salary.

122. California Labor Code section 510 provides that: (a) Eight hours of labor constitutes a day's work. Any work in excess of eight hours in one workday and any work in excess of 40 hours in any one workweek and the first eight hours worked on the seventh day of work in any one workweek shall be compensated at the rate of no less than one and one-half times the regular rate of pay for an employee. Any work in excess of 12 hours in one day shall be compensated at the rate of no less than twice the regular rate of pay for an employee. In addition, any work in excess of eight hours on any seventh day of

a workweek shall be compensated at the rate of no less than twice the regular rate of pay of an employee.

123. California Labor Code section 1194 provides in relevant part: (a) Notwithstanding any agreement to work for a lesser wage, any employee receiving less than the legal minimum wage or the legal overtime compensation applicable to the employee is entitled to recover in a civil action the unpaid balance of the full amount of this minimum wage or overtime compensation, including interest thereon, reasonable attorney's, and costs of suit.

124. California Labor Code section 218.5 provides in relevant part: In any action brought for the nonpayment of wages, fringe benefits, or health and welfare or pension fund contributions, the court shall award reasonable attorney's fees and costs to the prevailing party if any party to the action requests attorney's fees and costs upon the initiation of the action.

125. At all relevant times, throughout Plaintiff's employment, Plaintiff regularly and with Defendant's knowledge worked more than eight (8) hours in working day.

126. Defendant did not pay 1 ½ times the legal minimum hourly wage rate for all the hours worked over eight (8) hours in a work day and/or 40 hours in a work week, and Defendant did not pay two times the legal minimum hourly rate for all the hours worked over twelve (12) hours in a work day as alleged herein.

127. During the relevant time period, Defendant intentionally and willfully failed to pay for all hours Defendant suffered and/or permitted Plaintiff to work, including for overtime hours.

128. Plaintiff alleges that wages are due to Plaintiff for all hours worked during which Plaintiff was not paid proper overtime wages pursuant California Labor Code sections 510 and 1194 and all applicable laws, rules, orders, requirements and regulations.

129. Plaintiff demands all applicable reimbursements, interest and penalties for lost overtime wages.

130. Plaintiff further demands reasonable attorneys' fees and costs of suit pursuant to California Labor Code sections 218.5 and 1194, and any other applicable statute or regulation.

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TENTH CAUSE OF ACTION

FAILURE TO AUTHORIZE AND PERMIT REST PERIODS IN VIOLATION OF LABOR CODE SECTION 226.7 AND WAGE ORDER 4-2001

131. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

132. At all relevant times, Plaintiff was subject to the provisions of the California Industrial Welfare Commission's Wage Orders and California Labor Code.

133. California Labor Code section 226.7 provides that no employer shall require an employee to work during any rest period mandated by an applicable order of the California Industrial Welfare Commission.

134. The applicable Industrial Welfare Commission Wage Order provides that "[e]very employer shall authorize and permit all employees to take rest periods, which insofar as practicable shall be in the middle of each work period" and that the "rest period time shall be based on the total hours worked daily at the rate of ten (10) minutes net rest time per four (4) hours or major fraction thereof unless the total daily work time is less than three and one-half (3 ½) hours."

135. Defendant's conduct violates applicable Wage Orders and California Labor Code section 226.7. During the relevant time period, Defendant required Plaintiff to work four (4) or more hours without authorizing or permitting a ten (10) minute rest period per each four (4) hour period worked. During the relevant time period, Defendant willfully required Plaintiff to work during rest periods and failed to pay Plaintiff the full rest period premium for work performed during rest periods. During the relevant time period, Defendant failed to pay Plaintiff the full rest period premium due pursuant to California Labor Code section 226.7.

136. Pursuant to the applicable Industrial Welfare Commission Wage Order and California Labor Code section 226.7(b), Plaintiff is entitled to recover from Defendant one additional hour of pay at the employee's regularly hourly rate of compensation for each work day that the rest period was not provided.

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ELEVENTH CAUSE OF ACTION

FAILURE TO FURNISH COMPLIANT WAGE STATEMENTS IN VIOLATION OF LABOR CODE SECTION 226(a)

137. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

138. At all relevant times, Plaintiff was subject to the provisions of the California Industrial Welfare Commission's Wage Orders and California Labor Code.

139. California Labor Code section 226(a) provides that every employer shall furnish each of their employees an accurate itemized statement in writing showing (1) gross wages earned, (2) total hours worked by the employee, (3) the number of piece-rate units earned and any applicable piece rate if the employee is paid on a piece-rate basis, (4) all deductions, provided that all deductions made on written orders of the employee may be aggregated and shown as one item, (5) net wages earned, (6) the inclusive dates of the period for which the employee is paid, (7) the name of the employee and their or their social security number, (8) the name and address of the legal entity that is the employer, and (9) all applicable hourly rates in effect during the pay period and the corresponding number of hours worked at each hourly rate by the employee.

140. California Labor Code section 226 requires employers to list on an itemized wage statement "all amounts earned and now owing, not just those amounts actually paid." *Naranjo v. Spectrum Security Services, Inc.*, 2022 WL 1613499, at *13 (Cal., May 23, 2022).

141. California Labor Code section 226(e)(1) provides that "[a]n employee suffering injury as a result of a knowing and intentional failure by an employer to comply with subdivision (a) is entitled to recover the greater of all actual damages or fifty dollars ($50) for the initial pay period in which a violation occurs and one hundred dollars ($100) per employee for each violation in a subsequent pay period, not to exceed an aggregate penalty of four thousand dollars ($4,000), and is entitled to an award of costs and reasonable attorney's fees."

142. California Labor Code section 226.3 provides that "Any employer who violates subdivision (a) of Section 226 shall be subject to a civil penalty in the amount of two hundred fifty dollars ($250) per employee per violation in an initial citation and one thousand dollars ($1,000) per employee for each violation in a subsequent citation, for which the employer fails to provide the employee a wage

deduction statement or fails to keep the records required in subdivision (a) of Section 226. The civil penalties provided for in this section are in addition to any other penalty provided by law."

143. Plaintiff has suffered injury and damage to Plaintiff's statutory-protected rights as Defendant intentionally and willfully failed to provide Plaintiff with complete and accurate wage statements as alleged herein. The deficiencies include, but are not limited to, the failure to include: total hours worked by the employee; the inclusive dates of the period for which the employee is paid; the name of the employee and their social security number; the name and address of the legal entity that is the employer, and all applicable hourly rates in effect during the pay period and the corresponding number of hours worked at each hourly rate by the employee.

144. Plaintiff is entitled to recover from Defendant the greater of Plaintiff's actual damages caused by Defendant's failure to comply with California Labor Code section 226(a), or pursuant to California Labor Code section 226(e), an aggregate penalty not exceeding four thousand dollars per employee, and an award of costs and reasonable attorney's fees.

TWELFTH CAUSE OF ACTION

FAILURE TO PAY ALL WAGES OWED UPON TERMINATION IN VIOLATION OF LABOR CODE SECTIONS 201 TO 203

145. Plaintiff incorporates by reference all preceding and subsequent paragraphs.

146. At all relevant times, Plaintiff was subject to the provisions of the California Industrial Welfare Commission's Wage Orders and California Labor Code.

147. California Labor Code sections 201 and 203 provide that if an employer discharges an employee, the wages earned and unpaid at the time of discharge are due and payable immediately. For these purposes, wages include meal and rest break period premiums.

148. California Labor Code section 203 provides that if an employer willfully fails to pay wages owed, in accordance with sections 201 and 202, then the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid or until an action is commenced; but the wages shall not continue for more than thirty (30) days.

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149. As alleged herein, Defendant intentionally and willfully failed to pay Plaintiff all wages, earned and unpaid, immediately upon discharge. Defendant's failure in this regard violates California Labor Code sections 201 and 203.

150. On information and belief, Plaintiff alleges that Defendant's failure to pay Plaintiff all wages earned upon Plaintiff's discharge in accordance with Labor Code section 201 was willful. At all times relevant, Defendant had the ability to pay all earned and unpaid wages in accordance with Labor Code section 201 but intentionally chose not to comply.

151. Pursuant to Labor Code sections 203 and 218.5, Plaintiff is entitled to recover the full amount of Plaintiff's unpaid wages, waiting time penalties, reasonable attorneys' fees, and costs of suit. Plaintiff is entitled to recover interest on all due and unpaid wages and waiting time penalties under Labor Code section 218.6 and/or Civil Code section 3287(a).

JURY TRIAL DEMANDED

Plaintiff demands a jury as to all causes of action.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays judgment against Defendant as follows:

a. For general economic damages according to proof;

b. For general non-economic damages according to proof;

c. For special damages according to proof;

d. For penalties where provided by law;

e. For punitive damages where allowed by law;

f. For prejudgment interest pursuant to California Labor Code section 218.6, California Civil Code section 3287 and/or California Civil Code section 3288 and/or any other provision of law providing for prejudgment interest;

g. For attorneys' fees where allowed by law;

h. For costs of suit incurred herein; and

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i. For such other and further relief as deemed just and proper.

DATED: May 8, 2024

COLBY LAW FIRM, PC

By:_____

AARON N. COLBY
ZOE YUZNA

Attorneys for Plaintiff
ADEENA ELLISON

EXHIBIT 1

JewishLearningWorks

Main Office
44 Page Street
Suite 604
San Francisco, CA 94102
tel 415 751-6983
fax 415 668-1816

Jewish Community Library
1835 Ellis Street
San Francisco, CA 94115
tel 415 567-3327
fax 415 567-4542

June 23, 2021

Adeena Ellison
Administrative Assistant

Dear Adeena,

The Jewish LearningWorks Board of Directors has approved the 2021-2022 budget.

Effective July 1, 2021, I am pleased to confirm your annual salary, working 40 hours per week-100% FTE, will be $63,654.00.

Jewish LearningWorks reimburses employees up to $50/month for your cell phone. Please submit your reimbursement request monthly or quarterly via an expense report.

Thank you for your hard work during this difficult past year. Jewish LearningWorks is so fortunate to have a team of kind, committed and relationship-oriented individuals. We make a difference in the community every day, because of you.

I look forward to working together in the year to come. May it bring more ease, and many blessings to all of us.

Todah Rabah,

Dana Sheanin
Chief Executive Officer

We are so lucky to have you! I'm looking forward to actually seeing you more this year
DS

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December 20, 2021

Adeena Ellison
Administrative Assistant

Dear Adeena,

I am pleased to announce the Jewish LearningWorks Board of Directors has approved a special mid-year COLA increase of three percent (3%) for all staff.

Effective January 1, 2022, your annual salary will be $ 65,563. 62.

Thank you for your hard work during this difficult past year. Jewish LearningWorks is so fortunate to have a team of kind, committed and relationship-oriented individuals. We make a difference in the community every day, because of you.

I look forward to working together in the year to come. May it bring more ease, and many blessings to all of us.

Todah Rabah,

Dana Sheanin
Chief Executive Officer

JewishLearningWorks

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June 17, 2022

Adeena Ellison
Program Data Specialist

Dear Adeena,

Thank you so much for your dedication over the past year. Jewish LearningWorks is fortunate to have such a talented and committed team advancing our mission. I appreciate you, and all that your work makes possible in our community.

The Jewish LearningWorks Board of Directors has now approved the 2022-23 budget. Effective July 1, 2022, your annual salary will be $68,765.26. Your position is budgeted at 100% time, which translates to 40 hours of employment per week. All positions at Jewish LearningWorks are exempt.

In recognition of our largely remote work environment, Jewish LearningWorks will reimburse employees $50 per month for your cell phone. This year, that reimbursement will be added to your paycheck pretax, which you'll see reflected in Gusto. There will therefore be no need to submit your phone bills.

Wishing you a joyful and healthy summer!

Kol Tuv,

Dana Sheanin
Chief Executive Officer

EXHIBIT 2

JewishLearningWorks

January 31, 2023

Adeena Ellison
2647 Folsom Street
San Francisco, CA 94110

Re: Salary Increase

Dear Adeena,

Congratulations! You have earned a salary increase based on your work performance in 2022.

Effective February 1, 2023, Jewish LearningWorks will increase your annual salary to $71,000 less applicable withholding. All other terms of your employment remain the same.

Jewish LearningWorks adheres to a policy of employment-at-will, which allows either party to terminate the employment relationship at any time for any reason. This notice does not change this policy.

Thank you for your continued commitment to our team and we look forward to a great year.

Sincerely,

Dana Sheanin
Chief Executive Officer

I understand and acknowledge the terms of this letter set forth above:

Adeena-Shayna Ellison
Print Full Name

Signature

2/1/2023
Date

EXHIBIT 3

JewishLearningWorks

June 30, 2023

Adeena Ellison
Job Title: Program and Data Specialist

Re: COLA/Merit Increase

Dear Adeena,

The Jewish LearningWorks Board of Directors has approved our 2023-24 budget. Effective July 1, 2023, your annual salary will be $75,000. Your position is exempt and budgeted at 100% time or a 40-hour work week. All other terms and conditions of your employment remain unchanged.

Thank you so much for your dedication over the past year. Jewish LearningWorks is fortunate to have such a talented and committed team member helping to advance our mission. I appreciate you, and all that your work makes possible in our community.

Wishing you a joyful and healthy summer!

Kol Tuv,

Dana Sheanin
Chief Executive Officer

EXHIBIT 4

From: **Adeena Ellison** Adeena@jewishlearning.works
Subject: Fwd: Vacation Accrual Question
Date: December 6, 2023 at 3:19 PM
To: adeena.ellison@gmail.com

---------- Forwarded message ---------
From: **Adeena Ellison** <Adeena@jewishlearning.works>
Date: Mon, Jun 12, 2023 at 11:23 AM
Subject: Re: Vacation Accrual Question
To: Antonette Wint <hr@jewishlearning.works>

Hi Antonette,

I apologize for the late reply. I was waiting to talk to Jenni and then left to take a couple days of vacation.

This situation is especially confusing because I noticed something similar in the past. Last year I was looking at my offer letter from 2019 and 2020 and noticed that my hours had increased from 35 to 40, but my pay per hour was not adjusted. I brought this to Jenni, who brought it to Dana, who then confirmed with Lisa that I was not owed a pay adjustment or backpay because I had switched from a non-exempt to an exempt employee between 2019 and 2020.

Neither Dana nor Lisa spoke directly to me to confirm this, I only heard this explanation from Jenni.

So now I'm seeing this as an issue of both pay and vacation and sick time accrual from the last three fiscal years.

I appreciate that you are looking into this and working with Dana to find a resolution.

On Fri, Jun 9, 2023 at 7:37 AM Antonette Wint <hr@jewishlearning.works> wrote:

> Hi Adeena,
>
> Following up, there is no record of this change but Dana has prioritized finding a resolution for you upon her return next week. Either Dana or I will be in touch to confirm a clear path forward.
>
> Thanks for your cooperation and patience.
>
> Antonette
>
> On Tue, Jun 6, 2023 at 11:03 AM Antonette Wint <hr@jewishlearning.works> wrote:
>
>> Hi Adeena,
>>
>> I understand that you’re confused. We’ll figure this out. Please share the communication you received from Dana and Lisa about you having an exempt status and I’ll look further into this for you.
>>
>> Thanks,
>> Antonette
>>
>> On Tue, Jun 6, 2023 at 9:48 AM Adeena Ellison <Adeena@jewishlearning.works> wrote:
>>>> Hey Antonette,
>>>>
>>>> I didn’t not realize I have always had an exempt status. I’m confused because I have been told by both Dana and Lisa that I am exempt and not eligible for overtime..
>>>>
>>>> I’m also reading here that all employees are exempt at JLW.

JewishLearningWorks

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June 17, 2022

Adeena Ellison
Program Data Specialist

Dear Adeena,

Thank you so much for your dedication over the past year. Jewish LearningWorks is fortunate to have such a talented and committed team advancing our mission. I appreciate you, and all that your work makes possible in our community.

The Jewish LearningWorks Board of Directors has now approved the 2022-23 budget. Effective July 1, 2022, your annual salary will be $68,765.26. Your position is budgeted at 100% time, which translates to 40 hours of employment per week. All positions at Jewish LearningWorks are exempt.

In recognition of our largely remote work environment, Jewish LearningWorks will reimburse employees $50 per month for your cell phone. This year, that reimbursement will be added to your paycheck pretax, which you'll see reflected in Gusto. There will therefore be no need to submit your phone bills.

Wishing you a joyful and healthy summer!

Kol Tuv,

Dana Sheanin
Chief Executive Officer

jewishlearning.works

Again, thanks for your help.

Adeena

On Mon, Jun 5, 2023 at 8:04 PM Antonette Wint <hr@jewishlearning.works> wrote:

Hi Adeena,

On your signed 2019 offer letter, you are classified as a non-exempt employee. Based on that and since there is no documentation of your status changing, the vacation accrual schedule applied is correct.

Let me know if you have any other questions.

Antonette

On Mon, Jun 5, 2023 at 4:42 PM Adeena Ellison <Adeena@jewishlearning.works> wrote:

Thank you for this information, Antonette.

It sounds like I have always been accruing vacation based on a non-exempt status since joining Jewish LearningWorks in August, 2019.Can you confirm that?
I ask because many of my offer letters state that I should be an exempt employee, and therefore accruing vacation hours as an exempt employee.

According to the handbook, "regular, full-time exempt employees accrue vacation at the annual equivalent of: 120 hours (15 days) per year during the first and second years of employment 136 hours (17 days) during the third year 152 hours (19 days) during the fourth year 176 hours (22 days) per year during the fifth and subsequent years of employment."

Can you confirm that my understanding is correct?

On Mon, Jun 5, 2023 at 11:44 AM Antonette Wint <hr@jewishlearning.works> wrote:

Hi Adeena,

Accounting confirmed that you are currently accruing 112 hours/year as a non-exempt employee and in August when you hit the 5th year of employment with JLW your accrual rate will change to 133 hours/year.

Thanks,
Antonette

On Fri, Jun 2, 2023 at 1:22 PM Adeena Ellison <Adeena@jewishlearning.works> wrote:

Hi Antonette,

Sounds good to me.

On Thu, Jun 1, 2023 at 3:04 PM Antonette Wint <hr@jewishlearning.works> wrote:

Hi Adeena,

I'm well and hope you are too!

I will touch base with accounting and we'll see what we can find. Will follow-up soon.

Thanks,
Antonette

On Thu, Jun 1, 2023 at 5:59 PM Adeena Ellison <Adeena@jewishlearning.works> wrote:

Hi Antonette,

I hope you are doing well. I was wondering if you had any documents that show the vacation days that I have taken per fiscal year since my start at JLW in Aug 2019.

It is my 4th year at Jewish LearningWorks and I just want to check that I have been accruing the correct amount each year.

Can you confirm that I am currently set to accrue 152 hours, that last year I was set to accrue 136, and the year before 120?

Thank you,
Adeena

--

ADEENA ELLISON

ADEENA ELLISON
Programs and Data Specialist
Jewish LearningWorks
415.751.6983 ext. 109 Direct: 404.245.6511
Pronouns: she/her/hers
| Facebook | Instagram | LinkedIn

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EXHIBIT 5

Performance Improvement Plan (PIP)

Confidential

Employee Name: Adeena Ellison	**Job Title: Program and Data Specialist**
Date: October 5, 2023	**Department: Administrative**
PIP Duration: 90 days	**Supervisor: Jenni Mangel**

The purpose of this Performance Improvement Plan (PIP) is to clarify performance expectations and allow you the opportunity to demonstrate your ability to meet them. To facilitate your performance improvement, the following plan has been established.

Improvement Needed

1. Timely completion of tasks.
2. Proactive communication about tasks when timeline adjustments are required.
3. Attention to detail.
4. Efficiently producing essential reports that are both accurate and meet the required deadline for mailings and solicitations.
5. Demonstrating proactive leadership in your role as Program and Data Specialist.

Feedback has been given to you by your supervisor on several occasions regarding items 1, 2, and 3 in Spring/Summer 2023. Item 4 was last discussed on September 5, 2023.

Improvement Plan

These are the job duties and tasks performances that are expected to be improved.

A. All contact and account updates must be completed weekly, within 5 working days, by the date requested by other staff, and without deadline adjustment.
B. All form requests must be completed bi-weekly, within 10 working days, by the date requested by other staff, and without deadline adjustment.
C. Larger/system projects must be completed by the deadline established by staff. In cases where this is not possible, you should proactively communicate with the staff involved, explain the reason for delay, propose a new deadline, and agree upon a revised deadline. If the deadline cannot be moved you will need to adjust other things on your schedule to accommodate the work to be done.
D. All reports produced for mailing must be reviewed by you for accuracy, removing duplicates, deceased and do not solicit households, and sorted in alphabetical order by last name before they are presented to the requesting staff person. Proactive attention to details should increase to ensure minimal edits. Per point C, above, deadlines must be prioritized for these reports.
E. Ability to respond to real time requests related to unplanned programs/needs, and still meet deadlines.

Resources

Listed below are resources that are in place to support your improvement.

• Read *The 7 Habits of Highly Effective People* by Stephen R. Covey and discuss with your supervisor.
• Coaching with Marissa Lifshen Steinberger of One Eleven Leadership.
• Weekly meetings with Danielle Lapidus of Left Propeller for support on projects and resolution of more complex Salesforce issues.
• Weekly and progress update meetings with your supervisor.

Progress Updates

Performance will be monitored by your supervisor with regular follow-up meetings.

Date	Location
31 Oct 2023	In person meeting at Chabot office.
28 Nov 2023	In person meeting at Chabot office.
26 Dec 2023	In person meeting at Chabot office.

Timeline for Improvement, Consequences & Expectations

Effective immediately, you are placed on a 90-day PIP. During this time, you will be expected to progress on the plan outlined above. If there is no significant improvement to indicate that the expectations and goals will be met within the timeline indicated in this PIP, your employment may be terminated prior to 90 days. Failure to maintain performance expectations after the completion of the PIP may result in additional disciplinary action up to and including termination.

The PIP does not alter the employment-at-will relationship. Additionally, the contents of this PIP are to remain confidential. Should you have questions or concerns regarding the content, you will be expected to follow up directly with your supervisor.

You are expected to meet with your supervisor to review your progress. The dates of such meetings are listed above. Please be sure you are available for these meetings.

By signing below, you acknowledge that you and your supervisor have discussed this performance improvement plan.

Print Employee Name: Adeena Ellison

Employee Signature: _____

Date: 10/9/2023

Print Supervisor Name: _____

Supervisor Signature: _____

Date: _____

Conclusion

_____ Employee has achieved required improvements as described above.

_____ Employee has not achieved required improvements as described above.

Supervisor Signature: _____ Date: _____

Employee Signature : _____ Date: _____

Additional Comments -

_____

_____

_____

EXHIBIT 6

From: **Adeena Ellison** Adeena@jewishlearning.works
Subject: Re: Follow-up
Date: October 6, 2023 at 10:19 AM
To: Antonette Wint hr@jewishlearning.works

Will do. I passed this along to my doctor and we are meeting next week.

On Fri, Oct 6, 2023 at 9:48 AM Antonette Wint <hr@jewishlearning.works> wrote:

> You’re welcome! Let me know if you have any questions.
>
> On Thu, Oct 5, 2023 at 8:08 PM Adeena Ellison <Adeena@jewishlearning.works> wrote:
>
> > Hi again,
> >
> > I just saw your email. I'll respond in that thread. Thank you for the information.
> >
> > Adeena
> >
> > On Thu, Oct 5, 2023 at 4:38 PM Antonette Wint <hr@jewishlearning.works> wrote:
> >
> > > Adeena, please see the email I just sent over. Thanks
> > >
> > > On Thu, Oct 5, 2023 at 7:33 PM Adeena Ellison <Adeena@jewishlearning.works> wrote:
> > >
> > > > Hi Antonette,
> > > >
> > > > Since I’m not sure how long the approval process takes, it is unclear when my leave could realistically start. So I am unsure what dates I should specify. Can you give me an idea of how long the approval process may take?
> > > >
> > > > Thanks,
> > > > Adeena
> > > >
> > > > On Thu, Oct 5, 2023 at 3:29 PM Antonette Wint <hr@jewishlearning.works> wrote:
> > > >
> > > > > Oh, ok. You can share with Jenni that you have inquired with me about taking a leave of absence and the dates you anticipate you would be off if the leave is approved. I will follow-up with an email including the leave information.
> > > > >
> > > > > Thanks,
> > > > > Antonette
> > > > >
> > > > > On Thu, Oct 5, 2023 at 5:30 PM Adeena Ellison <Adeena@jewishlearning.works> wrote:
> > > > >
> > > > > > Hi Antonette,
> > > > > >
> > > > > > Thanks for getting back to me. I haven’t spoken to Jenni yet. I wanted to speak with you first to understand more about what needs to be done. If I need to speak with Jenni, let me know.
> > > > > >
> > > > > > Best,
> > > > > > Adeena
> > > > > >
> > > > > > On Thu, Oct 5, 2023 at 12:50 PM Antonette Wint <hr@jewishlearning.works> wrote:
> > > > > >
> > > > > > > Hi Adeena,
> > > > > > >
> > > > > > > Thank you for speaking with me this morning.
> > > > > > > As you requested, I've looked into what leave you might be eligible for. I have a quick follow-up question. Did you previously have a conversation with Jenni about leave of absence or other need to take time off?
> > > > > > >
> > > > > > > Antonette

EXHIBIT 7

MEDICAL/MENTAL HEALTH PROVIDER
ACCOMMODATION REQUEST FOR MORE INFORMATION FORM

Date: October 5, 2023

Employee Name:
Adeena Ellison

COMPLETED FORM MUST BE RETURNED JEWISH LEARNINGWORKS HUMAN RESOURCES AT HR@JEWISHLEARNING.WORKS WITHIN 15 DAYS OF THE DATE OF THIS PACKET.

The above employee has requested a workplace accommodation, to enable the employee to perform the essential functions of their position, either because of a disability as either defined under the Americans with Disabilities Act (ADA), as amended, or state law, or because the employee is pregnant and seeks an accommodation under the applicable state pregnancy accommodation law. The information requested on this form will assist us in making a determination regarding the employee's request.

INSTRUCTIONS: The following form must be completed in detail and signed by the employee's attending medical provider. Please attach additional pages or records as needed. Do not provide information not related to the employee's ability to perform their job duties.

Questions to clarify accommodation requested.

1. Please confirm you have examined the employee and are familiar with the employee's medical history.
   ☒ Yes ☐ No

2. Is the employee released to return to work full time, full duty without the need for restrictions, limitations, or accommodations? ☐ Yes ☐ No

   If yes, please state the employee's full, unrestricted return to work date and sign form on last page: _____

IF NO, PLEASE COMPLETE THE REMAINDER OF THIS FORM.

3. When can the employee return to work with restrictions or an accommodation? (Additional questions regarding restrictions or accommodations below). 11-06-2023

4. *Existence of impairment.*
   a. Does the employee have a physical or mental impairment(s)? ☒ Yes ☐ No

   b. Is the impairment open and obvious? ☐ Yes ☒ No

IF THE EMPLOYEE'S IMPAIRMENT IS OPEN AND OBVIOUS, DO NOT ANSWER QUESTIONS 5-8; RATHER SKIP TO QUESTION 9 AND PROCEED FROM THERE.

5. Please list physical or mental impairment(s) (do not provide medical diagnosis):
   severe anxiety, poor concentration, poor sleep, low energy

6. *Limitations on major life activities.* If the answer to #4 is yes, does the employee's impairment substantially limit one or more major life activities? ■ Yes ☐ No

7. *Limitations on major life activities.* If the answer to #4 is yes, which major life activity(s) is/are affected? Check all major life activities that both (a) are affected by the employee's impairment(s) and (b) restrict or limit the employee's ability to perform the employee's job duties.

Major life activities – general life activities:

☐ Bending ☐ Breathing ☐ Caring for self ■ Concentrating ☐ Eating ☐ Hearing	■ Interacting with others ■ Learning ☐ Lifting ☐ Performing manual tasks	■ Interacting with others ■ Learning ☐ Lifting ☐ Performing manual tasks ☐ Reaching ■ Reading ☐ Seeing ☐ Sitting ■ Sleeping ☐ Speaking	☐ Standing ■ Thinking ☐ Walking ☐ Working ☐ Other(s) (describe)

Major life activities – operation of major bodily functions:

☐ Bladder ☐ Bowels ☐ Brain ☐ Cardiovascular ☐ Circulatory	☐ Digestive ☐ Endocrine ☐ Genitourinary ☐ Hemic ☐ Immune	☐ Lymphatic ☐ Musculoskeletal ☐ Neurological ☐ Normal cell growth ☐ Operation of an organ	☐ Reproductive ☐ Respiratory ☐ Sensory organs & skin ☐ Other(s) (describe)

8. *Commencement of impairment(s).* For the impairments identified above, when did the employee's impairment(s) commence? If there is more than one impairment, please specify the start date for each:

09-21-2023

9. *Performance of essential job functions.* Does the employee's impairment(s) limit his/her ability to perform the essential functions of the employee's position (as defined in the job description) without any accommodation? ■ Yes ☐ No

If the answer is yes, please:

a) Identify which essential function(s) the employee is unable to perform without an accommodation:

all essential job functions

b) Describe the manner in which the employee's ability to perform each essential function is limited: impaired concentration, poor sleeping affecting energy + concentration, anxiety impacts ability to interact with others

Accommodation(s).

10. The employee has requested a leave of absence as an accommodation, ■ Yes ☐ No
If no is indicted, skip to #11.

a) Will a leave of absence assist the employee to return to work? ■ Yes ☐ No

b) How will leave assist the employee in returning to work?
allow her to focus on recovery, attend appointments, without risk of affecting job performance

c) Duration. What are the dates during which you anticipate the employee will need the leave of absence?
10-16-2023 to 11-06-2023

11. Is there another accommodation(s) instead of a leave of absence that will enable the employee to perform the essential job functions? If so, please describe:

N/A

a) How will the accommodation(s) assist the employee in performing the essential job functions?

N/A

b) *Duration.* For how long do you anticipate the employee will need the identified accommodation(s) to perform the essential job functions?
_____ (circle one) days/weeks/months/years; or permanent N/A

NOTE: You must provide your best medical judgment, based on current information, as to the length of time the employee will need an accommodation to perform their essential job functions.

12. *Additional information.* Are you aware of any other information that the company should consider in assessing whether the employee can perform the essential job functions with or without accommodation? ☐ Yes ■ No

If yes, please describe:

Attending Medical or Mental Health Provider Signature	
Signature of Provider: Arjun Gokhale	Date: 10-10-2023
Name of Provider: Arjun Gokhale, PMHNP	
Contact Information: 844-867-8444, opt #2	

Employee Authorization of Release of Information	
I hereby authorize my attending physician and/or hospital to release any information or copies thereof acquired in the course of my examination or treatment for the injury/illness identified above to my employer or my employer's representative.	
Employee Signature:	Date:

Note: The Genetic Information Nondiscrimination Act of 2008 (GINA) prohibits employers and other entities covered by GINA Title II from requesting or requiring genetic information of employees or their family members. In order to comply with this law, we are asking that you not provide any genetic information when responding to this request for medical information. "Genetic information" as defined by GINA, includes an individual's family medical history, the results of an individual's or family member's genetic tests, the fact that an individual or an individual's family member sought or received genetic services, and genetic information of a fetus carried by an individual or an individual's family member or an embryo lawfully held by an individual or family member receiving assistive reproductive services.

EXHIBIT 8

From: **Antonette Wint** hr@jewishlearning.works
Subject: (Extended) Leave of Absence
Date: November 3, 2023 at 3:27 PM
To: Adeena E adeena.ellison@gmail.com

Adeena,

Your leave is extended through 11/17/2023.
Please email me and your supervisor on Thursday, 11/16/2023 confirming your return on Monday, 11/20/2023.

Thanks and take care.

Antonette

On Fri, Nov 3, 2023 at 6:10 PM Adeena E <adeena.ellison@gmail.com> wrote:
> Antonette,
>
> Thank you for giving letting me know, I appreciate the information.
>
> Have a nice weekend.
>
> Adeena
>
> On Thu, Nov 2, 2023 at 2:28 PM Antonette Wint <hr@jewishlearning.works> wrote:
>> Adeena,
>>
>> Please note that any remaining vacation time you have will be applied to the additional time off, and once your vacation is exhausted the rest of your time off will be unpaid. Since there will not be any funds to deduct your usual benefits from, your 403(b) contributions will not continue while you are on unpaid leave. To continue your vision coverage ($4.34 semi-monthly), you will need to submit the premium amount to JLW. I can connect you with Magna on the best way to do this. The same applies to your $50 health FSA contribution.
>>
>> Thanks and please let me know if you have any questions.
>>
>> Antonette
>>
>> On Thu, Nov 2, 2023 at 4:20 PM Antonette Wint <hr@jewishlearning.works> wrote:
>>> Adeena, disregard further Gusto input for the additional time. I'll have accounting manage your time in the system for you.
>>>
>>> On Thu, Nov 2, 2023 at 3:54 PM Antonette Wint <hr@jewishlearning.works> wrote:
>>>> Since 11/6 would have been the date you return it would have been a work day. If you want that day off as well, please also submit a request for it. Thanks
>>>>
>>>> On Thu, Nov 2, 2023 at 3:39 PM Adeena E <adeena.ellison@gmail.com> wrote:
>>>>> Hi Antonette,
>>>>>
>>>>> I have requested the additional days off in Gusto.
>>>>>
>>>>> Please let me know if there is anything else you need from me.
>>>>>
>>>>> Adeena
>>>>>
>>>>> On Fri, Oct 27, 2023 at 11:43 AM Adeena E <adeena.ellison@gmail.com> wrote:
>>>>>> Hi again,
>>>>>>
>>>>>> Thank you for the quick response. I'm glad to hear that you are doing well. Ill be in touch soon.
>>>>>>
>>>>>> Best,
>>>>>> Adeena
>>>>>>
>>>>>> On Fri, Oct 27, 2023 at 10:46 AM Antonette Wint <hr@jewishlearning.works> wrote:
>>>>>>>> Hi Adeena,
>>>>>>>>
>>>>>>>> How are you? I'm well and hoping the same for you.
>>>>>>>>
>>>>>>>> In order to consider a request for additional and reasonable accommodation, JLW will need an official letter from your Provider stating the additional need.

Antonette

On Thu, Oct 26, 2023 at 5:31 PM Adeena E <adeena.ellison@gmail.com> wrote:

Hi Antonette,

I hope you are well. I'd like to request additional time for my leave to continue treatment. Can you let me know what steps I need to take?

Thank you,
Adeena

On Tue, Oct 17, 2023 at 12:01 PM Adeena E <adeena.ellison@gmail.com> wrote:

Hi Antonette,

Just confirming that I receiving this email.

Thanks,
Adeena

On Fri, Oct 13, 2023 at 7:36 AM Antonette Wint <hr@jewishlearning.works> wrote:

Hi Adeena,

You are to reach out to both me (hr@jewishlearning.works) and your supervisor (Jenni@jewishlearning.works) on 11/2 to confirm your return on 11/6.

You are not to work during the agreed upon time off. I've copied your personal email so that you will have the details of this accommodation without having to access JLW systems. Taking the time off is an acknowledgement of the absence details I've listed.

Regarding the question you asked, unpaid leave begins after vacation time is exhausted. Since you have vacation time, it is being applied during your time off.

Let me know if you need anything before the end of the day. Otherwise, take care during your time off.

Antonette

On Thu, Oct 12, 2023 at 7:42 PM Adeena Ellison <Adeena@jewishlearning.works> wrote:

Hi Antonette,

I have read through the email and understand that I am meant to communicate to Jenni on 11/2 to confirm my return on 11/6. My personal details above are correct.

Can you give me more information about why my vacation time is applied during this period?

Adeena

On Thu, Oct 12, 2023 at 3:02 PM Antonette Wint <hr@jewishlearning.works> wrote:

Hi Adeena,

Your request for leave of absence accommodation from October 16, 2023 through November 3, 2023 has been approved. You will return to work on Monday, November 6, 2023.
Please collaborate with your supervisor to ensure your team has the information they need about your responsibilities while you are gone.

Communication: Details of your leave are confidential but individuals whose work will be impacted by your absence will be made aware of the dates you will be off. Please set up an out-of-office message for the period you will be gone and work with Jenni to include any redirection for those who might reach out to you.

Benefits and compensation: Any health benefits you are enrolled in will remain active. Your available vacation time (117.67) will be applied toward your time off. This means that you will remain on payroll and your benefits premiums will be deducted as usual and as applicable.

PIP: Recognizing that a Performance Improvement Plan (PIP) is currently in place for you, it will be suspended during your absence.

Return to work: Please email me and your supervisor on Thursday, 11/2/2023, confirming your return on Monday, 11/6/2023. This communication is required.

ACTION required immediately: please confirm your personal details below should we need to be in contact with you regarding and during your leave.

- Email address: adeena.ellison@gmail.com
- Phone number: 404-245-6511

Thanks and take care,
Antonette

--
Human Resources Business Partner
Jewish LearningWorks
HR@JewishLearning.Works

mindful
health solutions
INNOVATIVE PSYCHIATRY SERVICES

Re: Adeena Ellison (DOB: 08/06/1992)

To Whom It May Concern:

Adeena Ellison has been under my care since 3/14/22, for treatment of several medical conditions. Due to an recent exacerbation in one of her medical conditions, I had recommended that Adeena go on medical leave from work until 11/6/23, and have been treating her on a weekly basis.

At her most recent appointment with me, Adeena and I felt that she would benefit from having her medical leave extended in order to get her symptoms more under control. At this time, I am recommending that Adeena's medical leave and workplace accommodations be extended until 11/20/23.

If you need further information or documentation from me, please provide Adeena with any forms that need completion and/or ask her to sign a release of information and contact my office.

Thank you for your assistance.

Arjun Gokhale, PMHNP
Mindful Health Solutions
360 Post Street, Suite 500, San Francisco, CA 94108
844-867-8444 (option #2)

EXHIBIT 9

JewishLearningWorks

November 30, 2023

Adeena Ellison
2647 Folsom St.
San Francisco, CA 94110

Dear Adeena,

As discussed, we regret to inform you that due to budget restraints Jewish LearningWorks has had to do some restructuring and your position as Program and Data Specialist will end December 31, 2023.

Jewish LearningWorks adheres to a policy of employment-at-will, which allows either party to terminate the employment relationship at any time for any reason. This notice does not change this policy. As an employee of Jewish LearningWorks, you have access to confidential and proprietary information about the organization's business. This information may include, but is not limited to, client legal and personal information, financial and banking information, donor and grant information, methods of operations, and information technology passwords. Per the Jewish LearningWorks' confidentiality agreement you executed, maintaining confidentiality of this information survives even after your employment with Jewish LearningWorks.

As applicable, your last day of health and dental benefits coverage will be December 31, 2023. You are eligible to continue your coverage through COBRA (Consolidated Omnibus Budget Reconciliation Act) whereby payment of the entire premium costs for the insurance would be your responsibility. You will receive more information about COBRA via postal mail.

For security reasons, although your last day as an employee will be December 31, 2023, your last day of work will be the same day you receive this notice, November 30, 2023. Please return any Jewish LearningWorks property in your possession within one week of this notice. Your final paycheck will be distributed on December 29, 2023 in the same manner as you have been paid previously. Included will be an additional amount to reflect any unused accrued vacation days, if applicable.

We truly thank you for your service and dedication during your tenure here, and wish you the best of luck in your future endeavors. If you have any questions, please let us know: hr@jewishlearning.works.

Sincerely,

Dana Sheanin
Chief Executive Officer

I understand and acknowledge the terms of this letter set forth above:

_____
Print Full Name

_____ _____
Signature Date

EXHIBIT 10

From: **Antonette Wint** hr@jewishlearning.works
Subject: Re: Confidential Separation Agreement
Date: December 7, 2023 at 4:10 PM
To: Adeena E adeena.ellison@gmail.com

Adeena, you still have access to your pay statements through Gusto and are free to review them. Please let me know if you have any questions about the details of the agreement.

Thanks,
Antonette

On Thu, Dec 7, 2023 at 6:31 PM Adeena E <adeena.ellison@gmail.com> wrote:

> Hi Antonette,
>
> I want to make sure that I am understanding this correctly. Are you saying that because I was offered to work 35 hours a week that I was only meant to make a percent of the $60k that I earned a percent of that money? Even though my contract said that I was a full time employee and salaried? If I am understanding this correctly, I should have been told years ago and not learning this now.
>
> Thanks,
> Adeena
>
> On Thu, Dec 7, 2023 at 2:14 PM Antonette Wint <hr@jewishlearning.works> wrote:
>
>> Hi Adeena,
>>
>> There is a record of 86.666667 hours per pay period paid to you back to 2020. That amount of hours is what full-time employees working 40 hours per week receive on a semi-monthly basis. Employees working fewer hours have their earnings adjusted accordingly.
>>
>> Thanks,
>> Antonette
>>
>> On Wed, Dec 6, 2023 at 7:00 PM Adeena E <adeena.ellison@gmail.com> wrote:
>>
>>> Hi Antonette,
>>>
>>> Can we set up a time to review this agreement of severance? I mentioned on our last call that I believe that I am still owed wages, due to the error in my employment status as an hourly employee until June 2023. I just forwarded you our conversation from back in June where I give more details.
>>>
>>> Essentially, after my first year of employment 5 additional hours were added to my week, from 35 - 40. The pay for those additional 5 hours was never added into my wages. I'm happy to talk through this.
>>>
>>> Best,
>>> Adeena
>>>
>>> On Mon, Dec 4, 2023 at 3:31 PM Antonette Wint <hr@jewishlearning.works> wrote:
>>>
>>>> There is no expectation to work through 12/6. That will just be the official last day of your employment with JLW.
>>>>
>>>> On Mon, Dec 4, 2023 at 6:17 PM Adeena E <adeena.ellison@gmail.com> wrote:
>>>>>
>>>>> Hi Antonette,
>>>>>
>>>>> I will take the time to review this agreement. As the termination date has been pushed to December 6th, I would appreciate it if you could clarify what specific expectations there are for me during this interim period.
>>>>>
>>>>> Adeena
>>>>>
>>>>> On Mon, Dec 4, 2023 at 2:30 PM Antonette Wint <hr@jewishlearning.works> wrote:
>>>>>>
>>>>>> Hi Adeena,
>>>>>>
>>>>>> I am following up on the initial conversation we had on 11/30/2023 regarding the elimination, due to budget cuts, of the Program and Data Specialist position you occupy at JLW. After I shared the news with you, you inquired about receiving severance pay. I paused the termination process as I attempted to connect with you to get the details of what it was you were asking for but neither of the dates/times I proposed seemed to work. I am still open to meeting with you but since I do not have your availability I am sharing the update I have via email.
>>>>>>
>>>>>> Your last day of employment will be December 6, 2023, through which you will be paid. I have spoken with JLW leadership and they have agreed to paying you severance. Although you did not share how much severance you were asking for, the organization is offering severance equal to 3 months of your regular pay at the time of termination. You have 14 days to consider this agreement and may consult with an attorney before signing.
>>>>>>
>>>>>> The severance payment will be distributed within 3 business days of the execution of the agreement, and after all company property has been returned You may coordinate with Magna on when to deliver the company property to the

company property has been returned. You may coordinate with Magna on when to deliver the company property to the office or when to have it delivered.

Thanks and let me know if you have any questions.

Antonette

--

Human Resources Business Partner
Jewish LearningWorks
HR@JewishLearning.Works